

TENTATIVE RULING

Case: **Simonis v. Simonis**
 Case No. CV-2025-0893

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

Defendant Brian Simonis' request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

The Court finds that plaintiff Alan Simonis fails to provide any explanation for the inconsistency between the dates identified in the original complaint regarding when he discovered defendants' alleged wrongdoing, and the date identified in the first amended complaint. (Compl., ¶¶ 19, 20; FAC, ¶ 16.) Thus, the Court disregards the date identified in the first amended complaint for the purpose of determining when the statute of limitations began to run on the causes of action contained therein. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343-344 [where an amended complaint attempts to avoid defects set forth in a prior complaint by ignoring them, the court may examine the prior complaint to ascertain whether the amended complaint is merely a sham]; *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 447 ["Where no explanation for an inconsistency is offered, the trial court is entitled to conclude that the pleading party's cause of action is a sham and sustain a demurrer without leave to amend."].)

The Court rules on defendant's demurrer to plaintiff's first amended complaint as follows:

- The demurrer to the first cause of action for financial elder abuse is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable four-year statute of limitations. (Welf. & Inst. Code §15610.30, 15657.7; *Bell v. Bank of California* (1908) 153 Cal. 234, 245 [a plaintiff's failure to comply with the statute of limitations is subject to a general demurrer]; *Sanchez v. South Hoover Hospital* (1976) 18 Cal.3d 93, 101 [the statute of limitations begins to run when the plaintiff has notice or information of circumstances to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his investigation]; *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806-807; *Gutierrez v. Mofid* (1985) 39 Cal.3d 892, 899; Compl., ¶¶ 19, 20.)
- The demurrer to the second cause of action for conversion abuse is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable three-year statute of limitations. (Code Civ. Proc., § 338, subd. (c); *Bell, supra*, 153 Cal. at p., 245; *San Francisco Credit Clearing House v. Wells* (1925) 196 Cal. 701, 706; see *Fearon v. Dep't of Corr.* (1984) 162 Cal.App.3d 1254, 1257 ["A conversion can occur when a willful failure to return property deprives the owner of possession."]; FAC, ¶ 42.)

- The demurrer to the third cause of action for fraud is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e). The Court finds that this cause of action is barred by the applicable three-year statute of limitations. (Code Civ. Proc., § 338, subd. (d); *Bell, supra*, 153 Cal. at p., 245; *Moreno v. Sanchez* (2003) 106 Cal.App.4th 1415, 1423 [a cause of action for fraud accrues upon discovery of the facts constituting the fraud or when the plaintiff could have discovered injury and cause through the exercise of reasonable diligence]; Compl., ¶¶ 19, 20.)
- The demurrer to the fourth cause of action for breach of fiduciary duty is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable four-year statute of limitations. (Code Civ. Proc., § 343; *Bell, supra*, 153 Cal. at p., 245; *Stalberg v. W. Title Ins. Co.* (1991) 230 Cal.App.3d 1223, 1230 [“A breach of fiduciary duty claim is based on concealment of facts, and the statute begins to run when plaintiffs discovered, or in the exercise of reasonable diligence could have discovered, that facts had been concealed.”]; Compl., ¶ 20; FAC, ¶ 61.)
- The demurrer to the fifth, sixth and seventh causes of action for constructive trust, declaratory relief and injunctive relief are **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that these are not independent causes of action but are requests for relief that are based on the second and/or third causes of action for conversion and fraud. (FAC, ¶¶ 64 – 68, 70 – 72, 74, 75.) Given the Court has sustained defendant’s demurrer to these causes of action, without leave to amend, these requests for relief necessarily fail. (See *Embarcadero Mun. Improvement Dist. v. County of Santa Barbara* (2001) 88 Cal.App.4th 781, 793; *Ivanoff v. Bank of America, N.A.* (2017) 9 Cal.App.5th 719, 734.)
- The demurrer to the eighth cause of action for a violation of Penal Code section 496 is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable one-year statute of limitations. (Code Civ. Proc., § 340, subd. (a); Penal Code, section 340, subd. (c); *Bell, supra*, 153 Cal. at p., 245; *Naftzger v. American Numismatic Society* (1996) 42 Cal.App.4th 421, 433 [the statute of limitations runs from the date the owner discovers the identity of the person in possession of the property]; see *Switzer v. Wood* (2019) 35 Cal.App.5th 116, 126; Compl., ¶¶ 19, 20.)

The Court further finds that no amendment can cure the above-identified defects of the first amended complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 [“[t]he burden of proving such reasonable possibility is squarely on the plaintiff”]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 [“plaintiff has the burden of proving that an amendment would cure the defect”].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.